

SHORT TERM RENTAL AFFIDAVIT CITY OF MIAMI BEACH, FLORIDA

Date: _____

Property Address: 580 72 ST, UNIT 1406 MIAMI BEACH, FL 33141

The property owner submits an affidavit to the City of Miami Beach, under penalty or of perjury, for each residential property or unit (or any portion thereof), which states that the property owner:

- a) Has confirmed that the city's land development regulations, which are applicable to the residential property, authorize the property owner to engage in the transient rental or occupancy of the residential property or unit; and
- b) Has obtained a business tax receipt that has been issued to the property owner for the purpose of engaging in the transient rental or occupancy of the residential property or unit, as authorized by the city's land development regulations; and
- c) Has registered the residential property with the city finance director, and obtained the appropriate resort tax registration certificate pursuant to [chapter 102](#), article IV, division 4 of this Code;
- d) Has complied with those applicable requirements of the American Disabilities Act Regulations and design standards, as may be required for the residential property or unit, in conjunction with attaining compliance with the Florida Fire Prevention Code and the Florida Building Code;
- e) Has obtained written authorization from the condominium association that expressly authorizes the property owner to engage in the transient rental or occupancy of the residential property or unit. The written authorization must be attached to, and incorporated within, the affidavit submitted to the City of Miami Beach;
- f) Has disclosed the business tax receipt number for each residential property or unit in the advertisement, and that the property owner has fully complied with those provisions set forth within [section 102-386](#);
- g) Shall provide, to the Code Compliance Department, the name and contact information for all hosting platforms, advertisement platforms and short-term residential rental advertising platforms on which the residential property is, or will be, listed for rent;
- h) Shall remit all applicable city business and tourist taxes to the appropriate governmental entities;
- i) Shall identify whether the entire residential property, or just a portion thereof (i.e., a room or rooms), will be utilized as a short-term residential rental;
- j) Shall have insurance coverage which will be in effect at all times while the residential property is being utilized as a short-term residential rental to cover all liability for any injury or harm which occurs to short-term residential rental occupants or their invitees;
- k) Has acknowledged, in a separate writing attached to the affidavit, that the property owner has received, reviewed and recognized that the use of the residential property as a short-term residential rental could result in the loss of the homestead exemption;

- l) Has accurately set forth the total amount of days the residential property was utilized as a short-term residential rental within the preceding business tax year, which is effective from October 1 through September 30 of the following year;
- m) Acknowledges that the short-term residential rental must be registered with the Florida Department of Revenue, or successor agency, for purposes of collecting and remitting applicable state taxes and all such state taxes have been, or will be, paid.

STATE OF Florida

COUNTY OF Miami Dade

Sworn to (or affirmed) and subscribed before me this ____ day of _____, 20____, by

Owner(s): MEHMET ALP SUNAR

Signature of Owner(s): _____

(Seal)

Signature of Notary Public

Print, Type/Stamp Name of Notary

Personally known: _____

OR Produced Identification: _____

Type of Identification Produced: _____

Sec. 102-386. Property owner's responsibilities regarding legally permissible transient rental and occupancy (short-term) of residential property.

Prior to receiving a business tax receipt, resort tax registration certificate or advertising the property, a property owner must comply with the following provisions:

- (a) *[Prohibited advertising.]* An owner of a residential property is prohibited from advertising the residential property, or any portion thereof, for its transient rental or occupancy, unless:
 - (1) The property owner submits an affidavit to the city, under penalty of perjury, for each residential property or unit (or any portion thereof), which states that the property owner:
 - a. Has confirmed that the city's land development regulations, which are applicable to the residential property, authorize the property owner to engage in the transient rental or occupancy of the residential property or unit; and
 - b. Has obtained a business tax receipt that has been issued to the property owner for the purpose of engaging in the transient rental or occupancy of the residential property or unit, as authorized by the city's land development regulations; and
 - c. Has registered the residential property with the city finance director, and obtained the appropriate resort tax registration certificate pursuant to chapter 102, article IV, division 4 of this Code;
 - d. Has complied with those applicable requirements of the American Disabilities Act Regulations and design standards, as may be required for the residential property or unit, in conjunction with attaining compliance with the Florida Fire Prevention Code and the Florida Building Code;
 - e. Has obtained written authorization from the condominium association that expressly authorizes the property owner to engage in the transient rental or occupancy of the residential property or unit. The written authorization must be attached to, and incorporated within, the affidavit submitted to the City of Miami Beach;
 - f. Has disclosed the business tax receipt number for each residential property or unit in the advertisement, and that the property owner has fully complied with those provisions set forth within section 102-386;
 - g. Shall provide, to the Code Compliance Department, the name and contact information for all hosting platforms, advertisement platforms and short-term residential rental advertising platforms on which the residential property is, or will be, listed for rent;
 - h. Shall remit all applicable city business and tourist taxes to the appropriate governmental entities;
 - i. Shall identify whether the entire residential property, or just a portion thereof (i.e., a room or rooms), will be utilized as a short-term residential rental;
 - j. Shall have insurance coverage which will be in effect at all times while the residential property is being utilized as a short-term residential rental to cover all liability for any injury or harm which occurs to short-term residential rental occupants or their invitees;
 - k. Has acknowledged, in a separate writing attached to the affidavit, that the property owner has received, reviewed and recognized that the use of the residential property as a short-term residential rental could result in the loss of the homestead exemption;
 - l. Has accurately set forth the total amount of days the residential property was utilized as a short-term residential rental within the preceding business tax year, which is effective from October 1 through September 30 of the following year;
 - m. Acknowledges that the short-term residential rental must be registered with the Florida Department of Revenue, or successor agency, for purposes of collecting and remitting applicable state taxes and all such state taxes have been, or will be, paid.
- (b) *Supporting documentation.* The property owner of the short-term residential rental shall maintain all required licenses, records, and other documentation sufficient to demonstrate that the statements and information required by subsection (a)(1) above are true and accurate. All such licenses, records, and other documentation shall be provided, upon request, to the city's code compliance department, and any failure to do so may result in the denial, suspension or revocation of the business tax receipt and/or the certificate of use.

- (c) *Providing false information.* Any false or misleading information in an application for a business tax receipt and/or certificate of use shall be sufficient to deny or revoke the business tax receipt and/or certificate of use. A determination that false or misleading information was provided by the property owner in an application is not appealable.
- (d) *Inspection.* Upon the issuance or renewal of a business tax receipt and/or certificate of use, the short-term residential rental shall be subject to inspection to ensure compliance with all applicable code requirements. The property owner shall provide all licenses, records and other documentation sufficient to demonstrate compliance with all requirements of this section during the inspection by the city.
- (e) *Maximum occupancy.* The maximum occupancy for short-term residential rentals shall be a maximum of two persons per bedroom, excluding children under two years of age. Notwithstanding the foregoing, at no time may the occupancy of a short-term residential rental exceed the maximum occupant load for the residential property pursuant to the Florida Building Code or the Florida Fire Prevention Code.
- (f) *Sexual offenders and sexual predators.*
 - (1) If the short-term residential rental property is located within 2,500 feet of a school, pursuant to section 21-283 of the Miami-Dade County Code, it shall be a violation to allow any person to occupy the short-term residential property with knowledge that such person is a registered sexual offender or registered sexual predator in any jurisdiction. The property owner shall be required to obtain confirmation of a nationwide search from the Miami Beach Police Department, or other law enforcement agency, that none of the prospective transient occupant(s) are a registered sexual offender or sexual predator as a result of a conviction of a sexual offense, as defined in section 21-280 of the Miami-Dade County Code. The property owner may call the Miami-Dade County Answer Center (311) to obtain assistance or referrals to determine whether a prospective transient occupant is a sexual offender or sexual predator, and to determine whether a residence is within 2,500 feet from a school.
 - (2) If the short-term residential rental property is within 2,500 feet of a school, pursuant to section 21-281 of the Miami-Dade County Code, it shall be a violation of this section for a sexual offender or sexual predator to occupy the property.
- (g) *Parking and vehicles.* All vehicles associated with the short-term residential rental, whether in the possession or control of the property owner, responsible party, or transient occupant, shall only be parked within a driveway or in a designated parking area on the subject property; or, where there is no such driveway or designated parking area, vehicles shall only be parked on the street or swale directly in front of the subject property. Transient occupants shall not be permitted to park more than two vehicles at any one time on the subject property or on the street or swale during the rental period.
- (h) *Noise.* All transient occupants shall abide by section 46-152 of the Miami Beach City Code, which prohibits unreasonably loud, excessive, unnecessary, or unusual noise. In addition, outdoor amplified sound at the short-term residential rental property is prohibited at all times.
- (i) *[Required disclosure.]* Notwithstanding the requirements of subsection (a), a property owner of a residential unit(s), which is located within an apartment-hotel or a condominium-hotel, must disclose within the affidavit that each prospective guest receives written notification that the unit(s) is/are not affiliated with the primary hotel operator at the property, and whether or not the prospective guest is entitled to those benefits and amenities that are offered by the primary hotel operator. The advertisement of the residential unit(s) by the property owner must include a disclaimer that the unit(s) is/are not affiliated with the primary hotel operation at the property and whether or not there is entitlement to those benefits and amenities that may be offered by the primary hotel operator. A property owner of a residential unit(s), as set forth herein must provide the contact information (name, telephone number and email address) to the guest at the time of the reservation of the non-affiliated unit(s) at the property.
- (j) *[Display of city-issued information.]* Each property owner shall provide and conspicuously display the city-issued business tax receipt number and the resort tax certificate number in every advertisement or listing of any type in connection with the rental of the residential property. Failure to comply with this requirement shall create a rebuttable presumption that the residential property is being operated without the proper registration.
- (k) *Duties of property owner.* For each short-term residential rental, the property owner shall:
 - (1) Provide written notice to transient occupants, prior to occupancy of the short-term residential rental property, of the short-term residential rental standards of this section and other applicable laws, ordinances, or regulations concerning noise, public nuisance, vehicle parking, solid waste collection, and common area usage. This information shall also be prominently displayed for each transient occupant within the subject property;
 - (2) Provide notice to prospective transient occupants at the time the subject property is listed as a short-term residential rental of any limitations on the property pertaining to access for the disabled;

- (3) Ensure compliance with all provisions of this section, including the short-term residential rental standards of this section, and promptly address and report any violations of this section or of such other law or regulation of which the property owner knows or should know to the city's code compliance department or city's police department, as appropriate, as well as to the hosting platform, advertisement platform or short-term residential rental advertising platform;
- (4) Ensure that any violations regarding the short-term residential rental property are promptly addressed and resolved 24 hours a day/seven days per week; and
- (5) Maintain a register with names and dates of stay of all guests, including, but not limited to, all transient occupants and their invitees, which shall be open to inspection by the city.

(I) *Penalties and enforcement.*

- (1) A violation of this section shall be subject to the following fines:
 - a. If the violation is the first offense, a person or business shall receive a civil fine of \$1,000.00;
 - b. If the violation is the second or subsequent violation within the preceding six months, a person or business shall receive a civil fine of \$5,000.00, and the business tax receipt and/or certificate of use shall be revoked.

(Ord. No. 2016-4062, § 2, 12-14-16; Ord. No. 2018-4211, § 2, 9-12-18; Ord. No. 2021-4442, § 1, 9-17-21)